

necessary to prevent prejudicing the party's interest in the litigation." (CCP §36(a)(1)-(2); §36(f).) Where a party meets the requisite standard for calendar preference based on the party's health and status as more than 70 years of age, preference must be granted; no weighing of interest is involved. (*Fox v. Superior Court (Metalclad Insulation, LLC)* (2018) 21 Cal.App.5th 529, 534.) The purpose of trial preference under Section 36 is "to safeguard litigants beyond a specified age against the legislatively acknowledged risk that death or incapacity might deprive them of the opportunity to have their case effectively tried and the opportunity to recover their just measure of damages or appropriate redress." (*Kline v. Superior Court* (1991) 227 Cal.App.3d 512, 515.) Upon granting such a motion, the court shall set the matter for trial not more than 120 days from that date. (CCP § 36(f).)

Here, there is no dispute that Plaintiff is 80 years old. It is quite clear that Plaintiff has a substantial interest in the action and his health is such "that a preference is necessary to prevent prejudicing the party's interest in the litigation." (CCP §36(a)(1)-(2).) There is also no dispute that Plaintiff has a substantial interest in this action. The salient question is whether Plaintiff's health makes preference "necessary to prevent prejudicing his interest in the litigation." (*Id.*) Pursuant to CCP § 36.5 "[a]n affidavit submitted in support of a motion for preference under subdivision (a) of Section 36 may be signed by the attorney or the party seeking preference based upon information and belief as to the medical diagnosis and prognosis of the party." Importantly, the *Fox* Court noted that the standard under CCP "subdivision (a), unlike under subdivision (d), which is more specific and more rigorous, includes no requirement of a doctor's declaration." (*Fox, supra.*)

The court previously heard and denied Plaintiff's motion for trial preference because the motion was only supported by an attorney declaration that did not contain sufficient evidence to support granting trial preference. However, the instant motion is supported by Dr. Date's declaration that clearly states trial preference is necessary. (Date Decl. ¶¶8.) Defendant takes issue with the fact that Dr. Date only reviewed Plaintiff's medical records and conducted a telehealth visit and did not examine Plaintiff personally. There is no such requirement for granting trial preference. In fact, a motion for trial preference can be based solely upon an attorney's declaration. Plaintiff has provided authenticated copies of his medical records from the VA (Moss Decl. ¶4, Ex. A) and Dr. Date explained their ultimate medical opinion was based on those records and the conversation they had with Plaintiff. (Date Decl. ¶¶4-5, 7-8.) Plaintiff has met his burden to entitle him to trial preference.

3.

CASE #	CASE NAME	HEARING NAME
CVRI2507054	MINTZ VS JON ZORN DBA HUMMINGBIRD MHP INC.	MOTION TO COMPEL & REQUEST FOR SANCTIONS

Tentative Ruling: PROOF OF SERVICE: Proper

DENY

This appears to be a wrongful eviction action. On December 31, 2025, Plaintiff Florinda Mintz, *in pro per* ("Plaintiff") filed a Complaint for intentional tort, harassment, and emotional distress against Defendant Jon Zorn dba Hummingbird MHP, Inc. ("Defendant"). In the Complaint, Plaintiff alleges that she owns a mobile home in the Hummingbird Mobile Home Park, and Defendant wrongfully evicted her from the mobile home park in retaliation for her complaints to appropriate agencies about safety hazards in the foundation of the mobile home park.

On March 23, 2026, Plaintiff served Defendant with "Case Discovery/Production of Documents/Request for Evidence." On April 28, 2026, Defendant served objections, and in response, on May 30, 2026, Plaintiff served a "Response to Defendant's Objections to Her Request of Evidence and Second Request for Discovery Production of Documents."

Plaintiff moves to compel Defendant to provide substantive responses to her discovery and for sanctions pursuant to C.C.P. §§ 128.5 and 128.7, arguing that Defendant provided baseless objections and counsel acted inappropriately.

In opposition, Defendant argues that the motion should be denied because: the discovery is not code-compliant and it is unclear whether the requests are interrogatories or requests for production of documents, so it is impossible to respond; he properly objected to the discovery; Plaintiff fails to provide a separate statement as required by CRC 3.1345; and there is no basis for sanctions.

In reply, Plaintiff argues that the amended motion she filed is the proper motion because the initial motion did not have sufficient information; the discovery only contains requests for production of documents, not interrogatories, and they are clear and concise; no separate statement was required because Defendant didn't produce any documents; and Defendant's counsel failed to meet and confer respectfully with her.

Defendant first argues Plaintiffs' motion should be denied because she failed to submit a separate statement in compliance with CRC 3.1345. This is correct.

CRC 3.1345(c) states that "[a] separate statement is a separate document filed and served with the discovery motion that provides all the information necessary to understand each discovery request and all the responses to it that are at issue. The separate statement must be full and complete so that no person is required to review any other document in order to determine the full request and the full response." Rule 3.1345 also requires that the separate statement must include the text of each request/interrogatory, the text of each response, and the factual and legal reasons for compelling a further response. (*Ibid.*) A trial court is well within its discretion to deny a motion to compel discovery based on the party's failure to comply with the separate statement requirements of CRC Rule 3.1345(a). (*Mills v. U.S. Bank* (2008) 166 Cal.App.4th 871, 893.)

Plaintiff argues that she was not required to file a separate statement because Defendant did not produce any documents in response to her discovery. This is incorrect. CRC 3.1345(a) states that “[a]ny motion involving the content of a discovery request or the responses to such a request must be accompanied by a separate statement,” including a motion to compel further responses to interrogatories or RFPs. Plaintiff’s motion seeks further responses to her discovery, so a separate statement is required. Plaintiff failed to provide any separate statement. On this basis alone, the motion can be denied.

A party may file a motion compelling further responses to interrogatories if it finds that the responses are inadequate, incomplete, or evasive, or an objection in the response is without merit or too general. (C.C.P. § 2030.300(a), 2033.290(a).) In a motion to compel further responses to interrogatories, the burden is on the responding party to justify any objection or failure to answer the interrogatories fully. (*Fairmont Ins. Co. v. Superior Court* (2000) 22 Cal.4th 245, 255.)

Additionally, when responses to document requests have been timely provided but are deemed deficient by the requesting party (e.g., the response is inadequate, incomplete, or evasive, or an objection in the response is without merit or too general), that party may file a motion compelling further responses. (C.C.P. § 2031.310 (a).) In a motion to compel a further response to document requests, the moving party must state facts demonstrating good cause justifying the discovery sought by demonstrating relevance and specific facts justifying discovery. (C.C.P. §2031.310(b)(1); *Kirkland v. Superior Court* (2002) 95 Cal.App.4th 92, 98.) The burden to show good cause for production “is met simply by a fact-specific showing of relevance.” (*Tbg Ins. Servs. Corp. v. Superior Court* (2002) 96 Cal.App.4th 443, 448.) “In the context of discovery, evidence is ‘relevant’ if it might reasonably assist a party in evaluating its case, preparing for trial, or facilitating settlement.” (*Glenfed Development Corp. v. Superior Court* (1997) 53 Cal.App.4th 1113, 1117.) It is sufficient if the information sought might reasonably lead to admissible evidence. (C.C.P. §2017.010.) Once good cause is established, the responding party has the burden to justify any objections. (*Kirkland, supra*, 25 Cal.App.4th at 98.)

In her discovery requests, Plaintiff includes a “request for direct evidence,” including phone records from various dates; a “request for ancillary evidence pertaining to the case,” including reports from various agencies; and a “request for Defendant’s list of witnesses.” (Mintz Decl., Ex. A.) In response, Defendant objects to the form of the requests, and also objects that they are vague, ambiguous, overbroad, and unduly burdensome; seek information that is privileged and/or protected; and seek information not within Defendant’s possession, custody, or control. (Leahy Decl., Ex. A.) Contrary to Plaintiff’s arguments, Defendant’s objections appear to have merit.

The right to discovery in California is broad, in order to prevent gamesmanship and surprise at trial. (*Tien v. Superior Court* (2006) 139 Cal.App.4th 528, 535; *Greyhound Corp. v. Superior Court of Merced County* (1961) 56 Cal. 2d 355, 396, superseded by statute on other grounds.) Under the Discovery Act, “any party may obtain discovery regarding any matter, not privileged, that is relevant to the subject matter involved in the pending action.” (C.C.P. §2017.010.) The party seeking discovery

has the burden of establishing that the discovery sought is admissible or reasonably calculated to lead to the discovery of admissible evidence. (*Calcor Space Facility v. Superior Court* (1997) 53 Cal. App. 4th 216, 223-224; see also *Board of Registered Nursing v. Superior Court* (2021) 59 Cal. App. 5th 1011, 1039.) “In the context of discovery, evidence is ‘relevant’ if it might reasonably assist a party in evaluating its case, preparing for trial, or facilitating settlement.” (*Glenfed Development Corp. v. Superior Court* (1997) 53 Cal.4th 1113, 1117.) It is sufficient that the information sought might reasonably lead to admissible evidence. “In accordance with the liberal policies underlying the discovery procedures, doubts as to relevance should generally be resolved in favor of permitting discovery. (*Colonial Life & Accident Ins. Co. v. Superior Court* (1982) 31 Cal. 3d 785, 790.)

However, there are requirements for the form and content of interrogatories and requests for production of documents. C.C.P. § 2030.060 sets forth the requirements for interrogatories, stating that the interrogatories must identify the propounding party, the responding party, and the set number; they must be separately set forth and each one full and complete; they cannot include a preface or instruction; and they cannot be compound, conjunctive, or disjunctive. (C.C.P. § 2030.060(a)-(g).) Pursuant to C.C.P. § 2031.030, any demand for documents must identify the propounding party, the responding party, and the set number; each category of documents requested must be reasonably particularized; and a time and place for the inspection/production must be provided. (C.C.P. § 2031.030(a)-(c).)

Additionally, although Plaintiff is acting on her own behalf, without an attorney, *pro per* litigants is held to the same standards as attorneys. (*Kobayashi v. Superior Court* (2009) 175 Cal.App.4th 536, 543.) Furthermore, self-represented litigants are entitled to the same, but no greater consideration than an attorney or represented litigant [*In re Marriage of Falcone & Fyke* (2008) 164 Cal.App.4th 814, 830; see also, *Tanguilig v. Valdez* (2019) 36 Cal.App.5th 514, 520], and they must comply with the rules of court to the same extent as an attorney [*County of Orange v. Smith* (2005) 132 Cal.App.4th 1434, 1444].

In the present case, Plaintiff includes both requests for documents and interrogatories (i.e., a list of Defendant’s witnesses) in one document.¹ This is improper. Additionally, the requests are not clear, even with the lengthy, improper explanations included therein. (See, Mintz Decl., Ex. A.) Thus, the objections raised by Defendant are proper. Accordingly, the motion is denied on the merits as well.

Plaintiff also moves for sanctions pursuant to C.C.P. §§ 128.5 and 128.7, arguing that Defendant is abusing the discovery process and counsel is not communicating in good faith. Neither of these contentions has merit.

¹ While Plaintiff argues that she did not propound any interrogatories in this case, in her discovery, she includes a “request for the Defendant’s list of witnesses,” and states “the defendant must provide the plaintiff with the names of his witnesses he has for this case. The defendant must provide a written explanation about what his witnesses are going to talk about.” (Mintz Decl., Ex. A, p. 4.) This is clearly an interrogatory. Additionally, while Plaintiff is entitled to know the identity of Defendant’s witnesses once she propounds proper discovery, she is not entitled to an explanation of the witnesses’ potential testimony in written discovery. If she wishes to obtain such information, she would need to take the deposition of the identified witnesses.

In a motion for sanctions, the moving party must first serve the motion for sanctions on the offending party at least 21 days before filing it; this safe harbor provision allows the opposing party to withdraw or appropriately amend the “challenged paper, claim, defense, contention or denial.” (*Barnes v. Department of Correction* (1999) 74 Cal.App.4th 126, 130.) At the end of the 21-day waiting period, if the pleading is not withdrawn, the moving party may file the motion. (C.C.P. §128.7(c)(1); *Martorana v. Marlin & Saltzman* (2009) 175 Cal.App.4th 685, 698-99.) Here, there is no evidence that Plaintiff complied with the safe-harbor provision, so the motion is, again, denied on this basis.

Additionally, the motion based on C.C.P. §§ 128.5 and 128.7 is denied on its merits. Pursuant to C.C.P. § 128.7, an attorney or unrepresented party who presents a pleading, motion or similar paper to the court makes an implied certification as to its legal and factual merit, and a violation of this implied certification subjects the attorney and/or party to sanctions. (C.C.P. § 128.7; *Murphy v. Yale Materials Handling Corp.* (1997) 54 Cal.App.4th 619,623.) Under C.C.P. § 128.7, “there are basically three types of submitted papers that warrant sanctions: factually frivolous (not well grounded in fact); legally frivolous (not warranted by existing law or a good faith argument for the extension, modification, or reversal of existing law); and papers interposed for an improper purpose.” (*Guillemin v. Stein* (2002) 104 Cal.App.4th 156, 167.) Whether the paper or pleading is frivolous or improper is tested objectively. (*Bockrath v. Aldrich Chem. Co., Inc.* (1999) 21 Cal.App.4th 71, 82.) “A claim is objectively unreasonable if any reasonable attorney would agree that it is totally and completely without merit.” (*Peake v. Underwood* (2014) 227 Cal.App.4th 428, 440 [internal quotation marks and citation omitted].) It is not necessary to demonstrate that the party acted in bad faith for C.C.P. § 128.7 sanctions. (*Id.* at 449.)

Under C.C.P. § 128.5(a), “[a] trial court may order a party, the party’s attorney, or both, to pay reasonable expenses, including attorney’s fees, incurred by another party as a result of actions or tactics, made in bad faith, that are frivolous or solely intended to cause unnecessary delay.” An action or tactic is brought in bad faith, if it is done for improper purposes, like harassment or delay. (*Bach v. McNelis* (1989) 207 Cal.App.3d 852, 876.) The term frivolous in § 128.5 is defined as “totally and completely without merit or for the sole purpose of harassing an opposing party.” (C.C.P. § 128.5(b)(2).) The moving party has the burden to establish that the opposing party’s conduct was frivolous, made in bad faith, or done solely to cause unnecessary delay. (*Id.*) Sanctions under C.C.P. § 128.5 are discretionary, and the court is not required to issue any sanctions, monetary or otherwise. (C.C.P. §§ 128.5(a), 128.7(a); *Kojababian v. Genuine Home Loans, Inc.* (2009) 174 Cal.App.4th 408, 421.)

Here, there is no evidence that the discovery responses or Defendant’s meet and confer efforts were objectively frivolous or made in bad faith. Therefore, there is no basis for sanctions under C.C.P. §§ 128.5 and/or 128.7, and the motion is denied.